

## 24STCV20835 24STCV20835

County: los-angeles

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Case Number: 24STCV20835 Hearing Date: July 9, 2026 Dept: 731

[TENTATIVE] ORDER DENYING

MOTION FOR JUDGMENT ON THE PLEADINGS

### 1. Background

#### Facts

On August 16, 2024, Plaintiff

Lawrence Carino filed a complaint against Defendant GLP Kingsley, LLC, asserting causes of action for (1) battery; (2) battery; (3) negligent supervision; (4) violation of the Tenant Anti-Harassment Ordinance (LA Municipal Code Chap. IV, Art. 5.3.); (5) physical elder abuse; and (6) breach of the covenant of quiet enjoyment.

The complaint alleges that Plaintiff, who is 72 years old, resides in an apartment in a building located at 911 S. Kingsley Drive, Los Angeles, California 90006 (the "Property"); that Defendant GLP is his landlord; and David is the live-in property manager. Plaintiff claims that since March of 2024, David has terrorized him. Plaintiff alleges that David's conduct escalated on July 3, 2024, when he attacked Plaintiff at his front door, threw Plaintiff to the ground, and pummeled him. Plaintiff alleges that GLP then served a three-day notice to quit on Plaintiff, seeking to evict Plaintiff on the ground that Plaintiff had struck David.

On April 15, 2026, Defendant GLP filed this motion for judgment on the pleadings as to the fifth cause of action for Elder Abuse. On June 25, 2026, Plaintiff filed an opposition. On June 30, 2026, Defendant filed a reply.

## 2. Motion

for Judgment on the Pleadings

a.

Meet and Confer

Defendant attempted to meet and confer with Plaintiff, who declined a rescheduled telephonic conference. (Alvarez Decl., ¶ 2-3.) Thus, the meet and confer requirements have been met.

b.

Legal Standard

A defendant may move for judgment on the pleadings where the court has no jurisdiction of the subject of the cause of action alleged in the complaint or the complaint does not state facts sufficient to constitute a cause of action against that defendant. (Code Civ. Proc., § 438 subd. (c)(1)(B).) A non-statutory motion for judgment on the pleadings may be made any time before or during trial. (Stoops v. Abbassi (2002) 100 Cal.App.4th 644, 650.) "Such motion may be made on the same ground as those supporting a general demurrer, i.e., that the pleading at issue fails to state facts sufficient to constitute a legally cognizable claim or defense." (Ibid.)

"In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties." (Code Civ. Proc., § 452; see also Stevens v. Superior Court (1999) 75 Cal.App.4th 594, 601.) "When a court evaluates a complaint, the plaintiff is entitled to reasonable inferences from the facts pled." (Duval v. Board of Tr. (2001) 93 Cal.App.4th 902, 906.) "In deciding or reviewing a judgment on the pleadings, all properly pleaded material facts are deemed to be true, as well as all facts that may be implied or inferred from those expressly alleged." (Fire Ins. Exch. v. Superior Court (2004) 116 Cal.App.4th 446, 452.) A motion for judgment on the pleadings normally

does not lie as to a portion of a cause of action. (Ibid.) "In the case of either a demurrer or a motion for judgment on the pleadings, leave to amend should be granted if there is any reasonable possibility that the plaintiff can state a good cause of action." (Gami v. Mullikin Medical Ctr. (1993) 18 Cal.App.4th 870, 876.)

c.

Cause of Action for Elder Abuse

Defendant

argues that Plaintiff fails to plead a cause of action for elder abuse against a corporate Defendant.

To state

a private cause of action for elder abuse, the plaintiff must plead facts showing two elements: (1) the defendant has subjected an elder to statutorily-defined physical abuse, neglect or financial abuse; and (2) the defendant acted with recklessness, malice, oppression, or fraud in the commission of the abuse. (Welfare & Inst C § 15657.)

With

respect to the level of culpability described in the second element of the claim, a plaintiff must allege conduct essentially equivalent to that which would support recovery of punitive damages, in order to obtain the Elder Abuse Act's heightened remedies. (Covenant Care, Inc. v. Superior Court (2004) 32 Cal.4th 771, 789 (Compare Welfare & Inst C § 15657, requiring "clear and convincing evidence that a defendant is liable for" elder abuse and "has been guilty of recklessness, oppression, fraud, or malice in the commission of the abuse," with Civil Code section 3294(a), requiring "clear and convincing evidence" that the defendant has been guilty of oppression, fraud, or malice.)) "Malice" is defined as "despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civ. Code, § 3294, subd. (c)(1).) When an elder abuse claim is brought against a corporate defendant, the plaintiff must further allege that an officer, director or managing agent authorized or ratified the abuse or neglect. (Welfare & Inst C § 15657(c); Civil Code § 3294.)

Further, like other statutory causes of

action, a claim under the Elder Abuse Act must be pled with particularity. (Covenant Care, Inc., supra, 32 Cal.4th at 790.) This requirement implies that a plaintiff must set forth in his/her complaint sufficiently detailed and specific facts to support an inference that each of the statutory elements of liability is satisfied (Mittenhuber v. City of Redondo Beach (1983) 142 Cal.App. 3d 1, 5), always bearing in mind that the distinction between conclusions of law and ultimate facts is not at all clear, and what is important is that the complaint as a whole contain sufficient facts to apprise the defendant of the basis upon which the plaintiff is seeking relief. (Perkins v. Superior Court (1981) 117 Cal.App.3d 1, 6 – 7.)

Here, specifically, Defendant contends that the facts as plead against GLP state a cause of action for negligence, at best, as they do not reach the particularity necessary for elder abuse. Defendant argues that Plaintiff, "on information and belief," states GLP "failed to do any kind of investigation, failed to review videographic evidence, or otherwise saw, but ignored, videographic evidence showing David's behavior toward Larry." (Complaint, pg. 16 lns. 9-10). Defendant argues this alleged failure to view video, based on information and belief, does not amount to clear and convincing evidence that defendant is guilty of something more than negligence. Defendant also contends this fails to show GLP acted with reckless, oppressive, fraudulent, or malicious conduct.

The complaint alleges that David physically abused Plaintiff by committing willful battery on Plaintiff twice: first on March 13, 2024 and again on the evening of July 3, 2024. (Compl., ¶ 102.) Therefore, this allegation shows malice.

But, as noted above, as to a corporate Defendant, Plaintiff must additionally allege that an officer, director or managing agent authorized or ratified the abuse or neglect. (Welfare & Inst C § 15657(c); Civil Code § 3294.) As to ratification, "[a] corporation cannot confirm and accept that which it does not actually know about." (Ibid. [citing College Hospital Inc. v. Superior Court (1994) 8 Cal.4th 704 726 [for ratification sufficient to justify punitive damages against corporation, there must be proof that officers, directors, or managing agents had actual knowledge of the malicious conduct and its outrageous character]]). The complaint alleges that the property has surveillance cameras, and one is pointed at Plaintiff's door. (Compl., ¶¶ 40, 42.) Plaintiff also

alleges that GLP-by and through its owner, Roh, failed to do any kind of investigation, failed to review videographic evidence, or otherwise saw, but ignored, videographic evidence showing David's behavior toward Larry. And that GLP's decision to seek Plaintiff's eviction on or about July 8, 2024 by virtue of the Notice ratified David's conduct. (Id., ¶ 104.) Defendant contends that there are no facts that such a video exists, or that GLP has the video, has seen the video, and has then made eviction decisions because of David's alleged behavior. The Court disagrees. The complaint alleges that GLP has video evidence that its claimed basis for the eviction is false. (Compl., ¶ 6.) It also alleges that GLP knew of David's conduct, and either failed to review or ignored video evidence. (Id., ¶ 73.) Plaintiff may plead in the alternative. Thus, because the complaint does allege that there is actual camera footage, which was viewed by GLP (but ignored), Plaintiff has alleged that GLP had actual knowledge that David attacked Plaintiff. Therefore, corporate ratification has been properly pled.

### 3. Conclusion

Defendant's motion for judgment on the pleadings is DENIED.

Moving Defendant is ordered to give notice.